On the contrary, The keys are ordained to the opening of the heavenly kingdom, which could not be opened before Christ's Passion. Therefore the priest of the Law had not the keys. Further, the sacraments of the old Law did not confer grace. Now the gate of the heavenly kingdom could not be opened except by means of grace. Therefore it could not be opened by means of those sacraments, so that the priests who administered them, had not the keys of the heavenly kingdom.

I answer that, Some have held that, under the Old Law, the keys of the kingdom were in the hands of the priests, because the right of imposing punishment for sin was conferred on them, as related in Lev. 5, which right seems to belong to the keys; but that these keys were incomplete then, whereas now they are complete as bestowed by Christ on the priests of the New Law.

But this seems to be contrary to the intent of the Apostle in the Epistle to the Hebrews (Heb. 9:11-12). For there the priesthood of Christ is given the preference over the priesthood of the Law, inasmuch as Christ came, "a high priest of the good things to come," and brought us "by His own blood" into a tabernacle not made with hand, whither the priesthood of the Old Law brought men "by the blood of goats and of oxen." Hence it is clear that the power of that priesthood did not reach to heavenly things but to the shadow of heavenly things: and so, we must say with others that they had not the keys, but that the keys were foreshadowed in them.

Reply to Objection 1: The keys of the kingdom go with the priesthood whereby man is brought into the heavenly kingdom, but such was not the priesthood of Levi; hence it had the keys, not of heaven, but of an earthly tabernacle.

Reply to Objection 2: The priests of the Old Law had authority to discern and judge, but not to admit those they judged into heaven, but only into the shadow of heavenly things.

Reply to Objection 3: They had no spiritual power, since, by the sacraments of the Law, they cleansed men not from their sins but from irregularities, so that those who were cleansed by them could enter into a tabernacle which was "made with hand."

Whether Christ had the key?

Objection 1: It would seem that Christ did not have the key. For the key goes with the character of order. But Christ did not have a character. Therefore He had not the key.

Objection 2: Further, Christ had power of "excellence" in the sacraments, so that He could produce the sacramental effect without the sacramental rite. Now the key is something sacramental. Therefore He needed no key, and it would have been useless to Him to have it.

On the contrary, It is written (Apoc. 3:7): "These things saith . . . He that hath the key of David," etc.

I answer that, The power to do a thing is both in the instrument and in the principal agent, but not in the same way since it is more perfectly in the latter. Now the power of the keys which we have, like other sacramental powers, is instrumental: whereas it is in Christ as principal agent in the matter of our salvation, by authority, if we consider Him as God, by merit, if we consider Him as man [*For St. Thomas' later teaching on this point, Cf. TP, Q[48], A[6]; FS, Q[112], A[1], AD 1]. But the very notion of a key expresses a power to open and shut, whether this be done by the principal agent or by an instrument. Consequently we must admit that Christ had the key, but in a higher way than His ministers, wherefore He is said to have the key of "excellence."

Reply to Objection 1: A character implies the notion of something derived from another, hence the power of the keys which we receive from Christ results from the character whereby we are conformed to Christ, whereas in Christ it results not from a character, but from the principal form.

Reply to Objection 2: The key, which Christ had was not sacramental, but the origin of the sacramental key.

Whether priests alone have the keys?

Objection 1: It would seem that not only priests have the keys. For Isidore says (Etym. vii, 12) that the "doorkeepers have to tell the good from the bad, so as to admit the good and keep out the bad." Now this is the definition of the keys, as appears from what has been said (Q[17], A[2]). Therefore not only priests but even doorkeepers have the keys.

Objection 2: Further, the keys are conferred on priests when by being anointed they receive power from God. But kings of Christian peoples also receive power from God and are consecrated by being anointed. Therefore not only priests have the keys.

Objection 3: Further, the priesthood is an order belonging to an individual person. But sometimes a number of people together seem to have the key, because certain Chapters can pass a sentence of excommunication, which pertains to the power of the keys. Therefore not only priests have the key.

Objection 4: Further, a woman is not capable of receiving the priesthood, since she is not competent to teach, according to the Apostle (1 Cor. 14:34). But some women (abbesses, for instance, who exercise a spiritual power over their subjects), seem to have the keys. Therefore not only priests have the keys.

On the contrary, Ambrose says (De Poenit. i): "This right," viz. of binding and loosing, "is granted to priests alone."

Further, by receiving the power of the keys, a man is set up between the people and God. But this belongs to the priest alone, who is "ordained . . . in the things that appertain to God, that he may offer up gifts and sacrifices for sins" (Heb. 5:1). Therefore only priests have the keys.

I answer that, There are two kinds of key. one reaches to heaven itself directly, by remitting sin and thus removing the obstacles to the entrance into heaven; and this is called the key of "order." Priests alone have this key, because they alone are ordained for the people in the things which appertain to God directly. The other key reaches to heaven, not directly but through the medium of the Church Militant. By this key a man goes to heaven, since, by its means, a man is shut out from or admitted to the fellowship of the Church Militant, by excommunication or absolution. This is called the key of "jurisdiction" in the external court, wherefore even those who are not priests can have this key, e.g. archdeacons, bishops elect, and others who can excommunicate. But it is not properly called a key of heaven, but a disposition thereto.

Reply to Objection 1: The doorkeepers have the key for taking care of those things which are contained in a material temple, and they have to judge whether a person should be excluded from or admitted to that temple; which judgment they pronounce, not by their own authority, but in pursuance to the priest's judgment, so that they appear to be the administrators of the priestly power.

Reply to Objection 2: Kings have no power in spiritual matters, so that they do not receive the key of the heavenly kingdom. Their power is confined to temporal matters, and this too can

only come to them from God, as appears from Rom. 13:1. Nor are they consecrated by the unction of a sacred order: their anointing is merely a sign that the excellence of their power comes down to them from Christ, and that, under Christ, they reign over the Christian people.

Reply to Objection 3: Just as in civil matters the whole power is sometimes vested in a judge, as in a kingdom, whereas sometimes it is vested in many exercising various offices but acting together with equal rights (Ethic. viii, 10,11), so too, spiritual jurisdiction may be exercised both by one alone, e.g. a bishop, and by many together, e.g. by a Chapter, and thus they have the key of jurisdiction, but they have not all together the key of order.

Reply to Objection 4: According to the Apostle (1 Tim. 2:11; Titus 2:5), woman is in a state of subjection: wherefore she can have no spiritual jurisdiction, since the Philosopher also says (Ethic. viii) that it is a corruption of public life when the government comes into the hands of a woman. Consequently a woman has neither the key of order nor the key of jurisdiction. Nevertheless a certain use of the keys is allowed to women, such as the right to correct other women who are under them, on account of the danger that might threaten if men were to dwell under the same roof.

Whether holy men who are not priests have the keys?

Objection 1: It would seem that holy men, even those who are not priests, have the use of the keys. For loosing and binding, which are the effects of the keys, derive their efficacy from the merit of Christ's Passion. Now those are most conformed to Christ's Passion, who follow Christ, suffering by patience and other virtues. Therefore it seems that even if they have not the priestly order, they can bind and loose.

Objection 2: Further, it is written (Heb. 7:7): "Without all contradiction, that which is less is blessed by the greater [Vulg.: 'better']." Now "in spiritual matters," according to Augustine (De Trin. vi, 8), "to be better is to be greater." Therefore those who are better, i.e. who have more charity, can bless others by absolving them. Hence the same conclusion follows.

On the contrary, "Action belongs to that which has the power," as the Philosopher says (De Somno et Vigil. i). But the key which is a spiritual power belongs to priests alone. Therefore priests alone are competent to have the use of the keys.

I answer that, There is this difference between a principal and an instrumental agent, that the latter does not produce, in the effect, its own likeness, but the likeness of the principal agent, whereas the principal agent produces its own likeness. Consequently a thing becomes a principal agent through having a form, which it can reproduce in another, whereas an instrumental agent is not constituted thus, but through being applied by the principal agent in order to produce a certain effect. Since therefore in the act of the keys the principal agent by authority is Christ as God, and by merit is Christ as man,* it follows that on account of the very fulness of Divine goodness in Him, and of the perfection of His grace, He is competent to exercise the act of the keys. [*For St. Thomas' later teaching on this point, cf. TP, Q[48], A[6]; FS, Q[112], A[1], ad 1]. But another man is not competent to exercise this act as principal agent, since neither can he give another man grace whereby sins are remitted, nor can he merit sufficiently, so that he is nothing more than an instrumental agent. Consequently the recipient of the effect of the keys, is likened, not to the one who uses the keys, but to Christ. Therefore, no matter how much grace a man may have, he cannot produce the effect of the keys, unless he be appointed to that purpose by receiving orders.

Reply to Objection 1: Just as between instrument and effect there is need or likeness, not of a similar form, but of aptitude in the instrument for the effect, so is it as regards the instrument and the principal agent. The former is the likeness between holy men and the suffering Christ, nor does it bestow on them the use of the keys.

Reply to Objection 2: Although a mere man cannot merit grace for another man condignly, yet the merit of one man can co-operate in the salvation of another. Hence there is a twofold blessing. One proceeds from a mere man, as meriting by his own act: this blessing can be conferred by any holy person in whom Christ dwells by His grace, in so far as he excels in goodness the person whom he blesses. The other blessing is when a man blesses, as applying a blessing instrumentally through the merit of Christ, and this requires excellence of order and not of virtue.

Whether wicked priests have the use of the keys?

Objection 1: It would seem that wicked priests have not the use of the keys. For in the passage where the use of the keys is bestowed on the apostles (Jn. 20:22,23), the gift of the Holy Ghost is promised. But wicked men have not the Holy Ghost. Therefore they have not the use of the keys.

Objection 2: Further, no wise king entrusts his enemy with the dispensation of his treasure. Now the use of the keys consists in dispensing the treasure of the King of heaven, Who is Wisdom itself. Therefore the wicked, who are His enemies on account of sin, have not the use of the keys.

Objection 3: Further, Augustine says (De Bapt. v, 21) that God "gives the sacrament of grace even through wicked men, but grace itself only by Himself or through His saints." Hence He forgives sin by Himself, or by those who are members of the Dove. But the remission of sins is the use of the keys. Therefore sinners, who are not "members of the Dove," have not the use of the keys.

Objection 4: Further, the prayer of a wicked priest cannot effect reconciliation, for, as Gregory says (Pastor. i, 11), "if an unacceptable person is sent to intercede, anger is provoked to yet greater severity." But the use of the keys implies a kind of intercession, as appears in the form of absolution. Therefore wicked priests cannot use the keys effectively.

On the contrary, No man can know whether another man is in the state of grace. If, therefore, no one could use the keys in giving absolution unless he were in a state of grace, no one would know that he had been absolved, which would be very unfitting.

Further, the wickedness of the minister cannot void the liberality of his lord. But the priest is no more than a minister. Therefore he cannot by his wickedness take away from us the gift which God has given through him.

I answer that, Just as participation of a form to be induced into an effect does not make a thing to be an instrument, so neither does the loss of that form prevent that thing being used as an instrument. Consequently, since man is merely an instrument in the use of the keys, however much he may through sin be deprived of grace, whereby sins are forgiven, yet he is by no means deprived of the use of the keys.

Reply to Objection 1: The gift of the Holy Ghost is requisite for the use of the keys, not as being indispensable for the purpose, but because it is unbecoming for the user to use them without it, though he that submits to them receives their effect.

Reply to Objection 2: An earthly king can be cheated and deceived in the matter of his treasure, and so he does not entrust his enemy with the dispensation thereof. But the King of heaven cannot

be cheated, because all tends to His own glory, even the abuse of the keys by some, for He can make good come out of evil, and produce many good effects through evil men. Hence the comparison fails.

Reply to Objection 3: Augustine speaks of the remission of sins in so far as holy men co-operate therein, not by virtue of the keys, but by merit of congruity. Hence He says that God confers the sacraments even through evil men, and among the other sacraments, absolution which is the use of the keys should be reckoned: but that through "members of the Dove," i.e. holy men, He grants forgiveness of sins, in so far as He remits sins on account of their intercession.

We might also reply that by "members of the Dove" he means all who are not cut off from the Church, for those who receive the sacraments from them, receive grace, whereas those who receive the sacraments from those who are cut off from the Church, do not receive grace, because they sin in so doing, except in the case of Baptism, which, in cases of necessity, may be received even from one who is excommunicate.

Reply to Objection 4: The prayer which the wicked priest proffers on his own account, is not efficacious: but that which he makes as a minister of the Church, is efficacious through the merit of Christ. Yet in both ways the priest's prayer should profit those who are subject to him.

Whether those who are schismatics, heretics, excommunicate, suspended or degraded have the use of the keys?

Objection 1: It would seem that those who are schismatics, heretics, excommunicate, suspended or degraded have the use of the keys. For just as the power of the keys results from orders, so does the power of consecration. But the above cannot lose the use of the power of consecration, since if they do consecrate it is valid, though they sin in doing so. Therefore neither can they lose the use of the keys.

Objection 2: Further, any active spiritual power in one who has the use of his free-will can be exercised by him when he wills. Now the power of the keys remains in the aforesaid, for, since it is only conferred with orders, they would have to be reordained when they return to the Church. Therefore, since it is an active power, they can exercise it when they will.

Objection 3: Further, spiritual grace is hindered by guilt more than by punishment. Now excommunication, suspension and degradation are punishments. Therefore, since a man does not lose the use of the keys on account of guilt, it seems that he does not lose it on account of the aforesaid.

On the contrary, Augustine says (Tract. cxxi in Joan.) that the "charity of the Church forgives sins." Now it is the charity of the Church which unites its members. Since therefore the above are disunited from the Church, it seems that they have not the use of the keys in remitting sins.

Further, no man is absolved from sin by sinning. Now it is a sin for anyone to seek absolution of his sins from the above, for he disobeys the Church in so doing. Therefore he cannot be absolved by them: and so the same conclusion follows.

I answer that, In all the above the power of the keys remains as to its essence, but its use is hindered on account of the lack of matter. For since the use of the keys requires in the user authority over the person on whom they are used, as stated above (Q[17], A[2], ad 2), the proper matter on whom one can exercise the use of the keys is a man under one's authority. And since it is by appointment of the Church that one man has authority over another, so a man may be deprived of

his authority over another by his ecclesiastical superiors. Consequently, since the Church deprives heretics, schismatics and the like, by withdrawing their subjects from them either altogether or in some respect, in so far as they are thus deprived, they cannot have the use of the keys.

Reply to Objection 1: The matter of the sacrament of the Eucharist, on which the priest exercises his power, is not a man but wheaten bread, and in Baptism, the matter is simply a man. Wherefore, just as, were a heretic to be without wheaten bread, he could not consecrate, so neither can a prelate absolve if he be deprived of his authority, yet he can baptize and consecrate, albeit to his own damnation.

Reply to Objection 2: The assertion is true, provided matter be not lacking as it is in the case in point.

Reply to Objection 3: Sin, of itself, does not remove matter, as certain punishments do: so that punishment is a hindrance not because it is contrary to the effect, but for the reason stated.

OF THOSE ON WHOM THE POWER OF THE KEYS CAN BE EXERCISED (THREE ARTICLES)

We must now consider those on whom the power of the keys can be exercised. Under this head there are three points of inquiry:

(1) Whether a priest can use the key, which he has, on any man?

(2) Whether a priest can always absolve his subject?

(3) Whether anyone can use the keys on his superior?

Whether a priest can use the key which he has, on any man?

Objection 1: It would seem that a priest can use the key which he has, on any man. For the power of the keys was bestowed on priests by Divine authority in the words: "Receive ye the Holy Ghost; whose sins you shall forgive, they are forgiven them" (Jn. 20:22,23). But this was said without any restriction. Therefore he that has the key, can use it on any without restriction.

Objection 2: Further, a material key that opens one lock, opens all locks of the same pattern. Now every sin of every man is the same kind of obstacle against entering into heaven. Therefore if a priest can, by means of the key which he has, absolve one man, he can do the same for all others.

Objection 3: Further, the priesthood of the New Testament is more perfect than that of the Old Testament. But the priest of the Old Testament could use the power which he had of discerning between different kinds of leprosy, with regard to all indiscriminately. Much more therefore can the priest of the Gospel use his power with regard to all.

On the contrary, It is written in the Appendix of Gratian: "It is not lawful for every priest to loose or bind another priest's parishioner." Therefore a priest cannot absolve everybody.

Further, judgment in spiritual matters should be better regulated than in temporal matters. But in temporal matters a judge cannot judge everybody. Therefore, since the use of the keys is a kind of judgment, it is not within the competency of a priest to use his key with regard to everyone.

I answer that, That which has to do with singular matters is not equally in the power of all. Thus, even as besides the general principles of medicine, it is necessary to have physicians, who

adapt those general principles to individual patients or diseases, according to their various requirements, so in every kingdom, besides that one who proclaims the universal precepts of law, there is need for others to adapt those precepts to individual cases, according as each case demands. For this reason, in the heavenly hierarchy also, under the Powers who rule indiscriminately, a place is given to the Principalities, who are appointed to individual kingdoms, and to the Angels who are given charge over individual men, as we have explained above (FP, Q[113], AA[1],2). Consequently there should be a like order of authority in the Church Militant, so that an indiscriminate authority over all should be vested in one individual, and that there should be others under him, having distinct authority over various people. Now the use of the keys implies a certain power to exercise authority, whereby the one on whom the keys are used, becomes the proper matter of that act. Therefore he that has power over all indiscriminately, can use the keys on all, whereas those who have received authority over distinct persons, cannot use the keys on everyone, but only on those over whom they are appointed, except in cases of necessity, when the sacraments should be refused to no one.

Reply to Objection 1: A twofold power is required in order to absolve from sins, namely, power of order and power of jurisdiction. The former power is equally in all priests, but not the latter. And therefore, when our Lord (Jn. 20:23) gave all the apostles in general, the power of forgiving sins, this is to be understood of the power which results from receiving orders, wherefore these words are addressed to priests when they are ordained. But to Peter in particular He gave the power of forgiving sins (Mat. 16:19), that we may understand that he has the power of jurisdiction before the others. But the power of orders, considered in itself, extends to all who can be absolved: wherefore our Lord said indeterminately, "Whose sins you shall forgive, they are forgiven them," on the understanding that this power should be used in dependence on the power given to Peter, according to His appointment.

Reply to Objection 2: A material key can open only its own lock. nor can any active force act save on its own matter. Now a man becomes the matter of the power of order by jurisdiction: and consequently no one can use the key in respect of another over whom he has not jurisdiction.

Reply to Objection 3: The people of Israel were one people, and had but one temple, so that there was no need for a distinction in priestly jurisdiction, as there is now in the Church which comprises various peoples and nations.

Whether a priest can always absolve his subject?

Objection 1: It would seem that a priest cannot always absolve his subject. For, as Augustine says (De vera et false Poenitentia [*Work of an unknown author]), "no man should exercise the priestly office, unless he be free from those things which he condemns in others." But a priest might happen to share in a sin committed by his subject, e.g. by knowledge of a woman who is his subject. Therefore it seems that he cannot always use the power of the keys on his subjects.

Objection 2: Further, by the power of the keys a man is healed of all his shortcomings. Now it happens sometimes that a sin has attached to it a defect of irregularity or a sentence of excommunication, from which a simple priest cannot absolve. Therefore it seems that he cannot use the power of the keys on such as are shackled by these things in the above manner.

Objection 3: Further, the judgment and power of our priesthood was foreshadowed by the judgment of the ancient priesthood. Now according to the Law, the lesser judges were not competent

to decide all cases, and had recourse to the higher judges, according to Ex. 24:14: "If any question shall arise" among you, "you shall refer it to them." It seems, therefore, that a priest cannot absolve his subject from graver sins, but should refer him to his superior.

On the contrary, Whoever has charge of the principal has charge of the accessory. Now priests are charged with the dispensation of the Eucharist to their subjects, to which sacrament the absolution of sins is subordinate [*Cf. Q[17], A[2], ad 1]. Therefore, as far as the power of the keys is concerned, a priest can absolve his subject from any sins whatever.

Further, grace, however small, removes all sin. But a priest dispenses sacraments whereby grace is given. Therefore, as far as the power of the keys is concerned, he can absolve from all sins.

I answer that, The power of order, considered in itself, extends to the remission of all sins. But since, as stated above, the use of this power requires jurisdiction which inferiors derive from their superiors, it follows that the superior can reserve certain matters to himself, the judgment of which he does not commit to his inferior; otherwise any simple priest who has jurisdiction can absolve from any sin. Now there are five cases in which a simple priest must refer his penitent to his superior. The first is when a public penance has to be imposed, because in that case the bishop is the proper minister of the sacrament. The second is the case of those who are excommunicated when the inferior priest cannot absolve a penitent through the latter being excommunicated by his superior. The third case is when he finds that an irregularity has been contracted, for the dispensation of which he has to have recourse to his superior. The fourth is the case of arson. The fifth is when it is the custom in a diocese for the more heinous crimes to be reserved to the bishop, in order to inspire fear, because custom in these cases either gives the power or takes it away.

Reply to Objection 1: In this case the priest should not hear the confession of his accomplice, with regard to that particular sin, but must refer her to another: nor should she confess to him but should ask permission to go to another, or should have recourse to his superior if he refused, both on account of the danger, and for the sake of less shame. If, however, he were to absolve her it would be valid*: because when Augustine says that they should not be guilty of the same sin, he is speaking of what is congruous, not of what is essential to the sacrament. [*Benedict XIV declared the absolution of an accomplice "in materia turpi" to be invalid.]

Reply to Objection 2: Penance delivers man from all defects of guilt, but not from all defects of punishment, since even after doing penance for murder, a man remains irregular. Hence a priest can absolve from a crime, but for the remission of the punishment he must refer the penitent to the superior, except in the case of excommunication, absolution from which should precede absolution from sin, for as long as a man is excommunicated, he cannot receive any sacrament of the Church.

Reply to Objection 3: This objection considers those cases in which superiors reserve the power of jurisdiction to themselves.

Whether a man can use the keys with regard to his superior?

Objection 1: It would seem that a man cannot use the keys in respect of a superior. For every sacramental act requires its proper matter. Now the proper matter for the use of the keys, is a person who is subject, as stated above (Q[19], A[6]). Therefore a priest cannot use the keys in respect of one who is not his subject.

Objection 2: Further, the Church Militant is an image of the Church Triumphant. Now in the heavenly Church an inferior angel never cleanses, enlightens or perfects a higher angel. Therefore neither can an inferior priest exercise on a superior a hierarchical action such as absolution.

Objection 3: Further, the judgment of Penance should be better regulated than the judgment of an external court. Now in the external court an inferior cannot excommunicate or absolve his superior. Therefore, seemingly, neither can he do so in the penitential court.

On the contrary, The higher prelate is also "compassed with infirmity," and may happen to sin. Now the power of the keys is the remedy for sin. Therefore, since he cannot use the key on himself, for he cannot be both judge and accused at the same time, it seems that an inferior can use the power of the keys on him.

Further, absolution which is given through the power of the keys, is ordained to the reception of the Eucharist. But an inferior can give Communion to his superior, if the latter asks him to. Therefore he can use the power of the keys on him if he submit to him.

I answer that, The power of the keys, considered in itself, is applicable to all, as stated above (A[2]): and that a priest is unable to use the keys on some particular person is due to his power being limited to certain individuals. Therefore he who limited his power can extend it to whom he wills, so that he can give him power over himself, although he cannot use the power of the keys on himself, because this power requires to be exercised on a subject, and therefore on someone else, for no man can be subject to himself.

Reply to Objection 1: Although the bishop whom a simple priest absolves is his superior absolutely speaking, yet he is beneath him in so far as he submits himself as a sinner to him.

Reply to Objection 2: In the angels there can be no defect by reason of which the higher angel can submit to the lower, such as there can happen to be among men; and so there is no comparison.

Reply to Objection 3: External judgment is according to men, whereas the judgment of confession is according to God, in Whose sight a man is lessened by sinning, which is not the case in human prelacy. Therefore just as in external judgment no man can pass sentence of excommunication on himself, so neither can he empower another to excommunicate him. On the other hand, in the tribunal of conscience he can give another the power to absolve him, though he cannot use that power himself.

It may also be replied that absolution in the tribunal of the confessional belongs principally to the power of the keys and consequently to the power of jurisdiction, whereas excommunication regards jurisdiction exclusively. And, as to the power of orders, all are equal, but not as to jurisdiction. Wherefore there is no comparison.

OF THE DEFINITION, CONGRUITY AND CAUSE OF EXCOMMUNICATION (FOUR ARTICLES)

We must now treat of excommunication: we shall consider: (1) the definition, congruity and cause of excommunication; (2) who has the power to excommunicate; (3) communication with excommunicated persons; (4) absolution from excommunication.

Under the first head there are four points of inquiry:

(1) Whether excommunication is suitably defined?

(2) Whether the Church should excommunicate anyone?
(3) Whether anyone should be excommunicated for inflicting temporal harm?
(4) Whether an excommunication unjustly pronounced has any effect?

Whether excommunication is suitably defined as separation from the communion of the Church, etc?

Objection 1: It would seem that excommunication is unsuitably defined by some thus: "Excommunication is separation from the communion of the Church, as to fruit and general suffrages." For the suffrages of the Church avail for those for whom they are offered. But the Church prays for those who are outside the Church, as, for instance, for heretics and pagans. Therefore she prays also for the excommunicated, since they are outside the Church, and so the suffrages of the Church avail for them.

Objection 2: Further, no one loses the suffrages of the Church except by his own fault. Now excommunication is not a fault, but a punishment. Therefore excommunication does not deprive a man of the general suffrages of the Church.

Objection 3: Further, the fruit of the Church seems to be the same as the Church's suffrages, for it cannot mean the fruit of temporal goods, since excommunication does not deprive a man of these. Therefore there is no reason for mentioning both.

Objection 4: Further, there is a kind of excommunication called minor*, by which man is not deprived of the suffrages of the Church. [*Minor excommunication is no longer recognized by Canon Law.] Therefore this definition is unsuitable.

I answer that, When a man enters the Church by Baptism, he is admitted to two things, viz. the body of the faithful and the participation of the sacraments: and this latter presupposes the former, since the faithful are united together in the participation of the sacraments. Consequently a person may be expelled from the Church in two ways. First, by being deprived merely of the participation of the sacraments, and this is the minor excommunication. Secondly, by being deprived of both, and this is the major excommunication, of which the above is the definition. Nor can there be a third, consisting in the privation of communion with the faithful, but not of the participation of the sacraments, for the reason already given, because, to wit, the faithful communicate together in the sacraments. Now communion with the faithful is twofold. One consists in spiritual things, such as their praying for one another, and meeting together for the reception of sacred things; while another consists in certain legitimate bodily actions. These different manners of communion are signified in the verse which declares that those who are excommunicate are deprived of---

"os, orare, vale, communio, mensa."

"Os," i.e. we must not give them tokens of goodwill; "orare," i.e. we must not pray with them; "vale," we must not give them marks of respect; "communio," i.e. we must not communicate with them in the sacraments; "mensa," i.e. we must not take meals with them. Accordingly the above definition includes privation of the sacraments in the words "as to the fruit," and from partaking together with the faithful in spiritual things, in the words, "and the general prayers of the Church."

Another definition is given which expresses the privation of both kinds of acts, and is as follows: "Excommunication is the privation of all lawful communion with the faithful."

Reply to Objection 1: Prayers are said for unbelievers, but they do not receive the fruit of those prayers unless they be converted to the faith. In like manner prayers may be offered up for those who are excommunicated, but not among the prayers that are said for the members of the Church. Yet they do not receive the fruit so long as they remain under the excommunication, but prayers

are said for them that they may receive the spirit of repentance, so that they may be loosed from excommunication.

Reply to Objection 2: One man's prayers profit another in so far as they can reach to him. Now the action of one man may reach to another in two ways. First, by virtue of charity which unites all the faithful, making them one in God, according to Ps. 118:63: "I am a partaker with all them that fear Thee." Now excommunication does not interrupt this union, since no man can be justly excommunicated except for a mortal sin, whereby a man is already separated from charity, even without being excommunicated. An unjust excommunication cannot deprive a man of charity, since this is one of the greatest of all goods, of which a man cannot be deprived against his will. Secondly, through the intention of the one who prays, which intention is directed to the person he prays for, and this union is interrupted by excommunication, because by passing sentence of excommunication, the Church severs a man from the whole body of the faithful, for whom she prays. Hence those prayers of the Church which are offered up for the whole Church, do not profit those who are excommunicated. Nor can prayers be said for them among the members of the Church as speaking in the Church's name, although a private individual may say a prayer with the intention of offering it for their conversion.

Reply to Objection 3: The spiritual fruit of the Church is derived not only from her prayers, but also from the sacraments received and from the faithful dwelling together.

Reply to Objection 4: The minor excommunication does not fulfill all the conditions of excommunication but only a part of them, hence the definition of excommunication need not apply to it in every respect, but only in some.

Whether the Church should excommunicate anyone?

Objection 1: It would seem that the Church ought not to excommunicate anyone, because excommunication is a kind of curse, and we are forbidden to curse (Rom. 12:14). Therefore the Church should not excommunicate.

Objection 2: Further, the Church Militant should imitate the Church Triumphant. Now we read in the epistle of Jude (verse 9) that "when Michael the Archangel disputing with the devil contended about the body of Moses, he durst not bring against him the judgment of railing speech, but said: The Lord command thee." Therefore the Church Militant ought not to judge any man by cursing or excommunicating him.

Objection 3: Further, no man should be given into the hands of his enemies, unless there be no hope for him. Now by excommunication a man is given into the hands of Satan, as is clear from 1 Cor. 5:5. Since then we should never give up hope about anyone in this life, the Church should not excommunicate anyone.

On the contrary, The Apostle (1 Cor. 5:5) ordered a man to be excommunicated.

Further, it is written (Mat. 18:17) about the man who refuses to hear the Church: "Let him be to thee as the heathen or publican." But heathens are outside the Church. Therefore they also who refuse to hear the Church, should be banished from the Church by excommunication.

I answer that, The judgment of the Church should be conformed to the judgment of God. Now God punishes the sinner in many ways, in order to draw him to good, either by chastising him with stripes, or by leaving him to himself so that being deprived of those helps whereby he was kept out

of evil, he may acknowledge his weakness, and humbly return to God Whom he had abandoned in his pride. In both these respects the Church by passing sentence of excommunication imitates the judgment of God. For by severing a man from the communion of the faithful that he may blush with shame, she imitates the judgment whereby God chastises man with stripes; and by depriving him of prayers and other spiritual things, she imitates the judgment of God in leaving man to himself, in order that by humility he may learn to know himself and return to God.

Reply to Objection 1: A curse may be pronounced in two ways: first, so that the intention of the one who curses is fixed on the evil which he invokes or pronounces, and cursing in this sense is altogether forbidden. Secondly, so that the evil which a man invokes in cursing is intended for the good of the one who is cursed, and thus cursing is sometimes lawful and salutary: thus a physician makes a sick man undergo pain, by cutting him, for instance, in order to deliver him from his sickness.

Reply to Objection 2: The devil cannot be brought to repentance, wherefore the pain of excommunication cannot do him any good.

Reply to Objection 3: From the very fact that a man is deprived of the prayers of the Church, he incurs a triple loss, corresponding to the three things which a man acquires through the Church's prayers. For they bring an increase of grace to those who have it, or merit grace for those who have it not; and in this respect the Master of the Sentences says (Sent. iv, D, 18): "The grace of God is taken away by excommunication." They also prove a safeguard of virtue; and in this respect he says that "protection is taken away," not that the excommunicated person is withdrawn altogether from God's providence, but that he is excluded from that protection with which He watches over the children of the Church in a more special way. Moreover, they are useful as a defense against the enemy, and in this respect he says that "the devil receives greater power of assaulting the excommunicated person, both spiritually and corporally." Hence in the early Church, when men had to be enticed to the faith by means of outward signs (thus the gift of the Holy Ghost was shown openly by a visible sign), so too excommunication was evidenced by a person being troubled in his body by the devil. Nor is it unreasonable that one, for whom there is still hope, be given over to the enemy, for he is surrendered, not unto damnation, but unto correction, since the Church has the power to rescue him from the hands of the enemy, whenever he is willing.

Whether anyone should be excommunicated for inflicting temporal harm?

Objection 1: It would seem that no man should be excommunicated for inflicting a temporal harm. For the punishment should not exceed the fault. But the punishment of excommunication is the privation of a spiritual good, which surpasses all temporal goods. Therefore no man should be excommunicated for temporal injuries.

Objection 2: Further, we should render to no man evil for evil, according to the precept of the Apostle (Rom. 12:17). But this would be rendering evil for evil, if a man were to be excommunicated for doing such an injury. Therefore this ought by no means to be done.

On the contrary, Peter sentenced Ananias and Saphira to death for keeping back the price of their piece of land (Acts 5:1-10). Therefore it is lawful for the Church to excommunicate for temporal injuries.